

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUPP054305: LOGAN MORRISEY, et al. vs JENNIFER GUTIERREZ, et al.
08/03/2026 in Department 43
Motion to Set Aside/Vacate Default**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants Jeniffer Gutierrez and Deborah Stowe's Amended Motion to Set Aside Default

Tentative Ruling: Defendants Jeniffer Gutierrez and Deborah Stowe's unopposed Motions to Set Aside Default are DENIED.

This ruling addresses the Amended Motion to Set Aside Default which supersedes the previously filed motion.

The amended motion contains a declaration from Deborah Stowe declaring that she was not personally served with the summons and complaint, and incorrectly declaring that the proof of service filed with the court does not indicate substitute service. She does not deny that substitute service occurred. The Court suggests she was looking at the proof of personal service on Jennifer Gutierrez. The proof of substitute service for Deborah Stowe is signed by a registered process server and indicates substitute service on Deborah Stowe by service on Jennifer Gutierrez. It is accompanied by a declaration of diligence and a declaration of mailing in compliance with Code

of Civil Procedure § 415.20. Deborah Stowe admits that she resides with Jennifer Gutierrez. A presumption of proper service is established under Evidence Code § 647.

The only evidentiary statement from Jennifer Gutierrez is in the form motion in which she states she was “never served with the summons and complaint...” and checked the box stating she did not receive the summons and complaint until May 22, 2025. The proof of personal service on Jennifer Gutierrez is signed by a registered process server and indicates personal service on Jennifer Gutierrez in compliance with Code of Civil Procedure § 415.10. Again, a presumption of proper service is established under Evidence Code § 647.

In order to rebut the presumption under Evidence Code § 647, defendants must produce credible, admissible evidence to prove they were not actually served. They have not done so. The motion is therefore denied.

Plaintiff is ordered to serve notice of the Court’s ruling.